transferred, in whole or in part to any person, association, or corporation qualified to hold such leases and permits. The approval of a transfer of only part of the lands described in a permit or lease will create a new permit or lease which will be given a current serial number, but a discovery on lands under one permit will not inure to the benefit of the other. The approval of such a transfer will not extend the life of the permit or the readjustment periods of the lease. Transfers of permits and leases, whether by direct assignments, working agreements, transfer of royalty interests, subleases or otherwise, must be filed for approval at the office specified in § 193.11 within 90 days from final execution and must contain evidence of the qualifications of the assignee or transferee, consisting of the same showing required of a lease or permit applicant by § 193.11 (a) (2) and (3) and (b). If the instrument fails to describe the true consideration, a statement must be submitted showing the consideration in full. The statement will be treated as confidential and not for public inspection. If a bond is necessary it must be furnished. Transfers of record title interest must be filed in triplicate. A single executed copy of all other instruments of transfer is sufficient. A transfer will take effect the first day of the month following its final approval by the Director, Bureau of Land Management, or if the transferee requests, the first day of the month of the approval.

(b) The transferor of a permit or lease, including a sublease, and his surety will continue to be responsible for the performance of any obligation under the permit or lease until the effective date of the approval of the transfer. If the transfer is not approved, their obligation to the United States shall continue as though no such transfer had been filed for approval. After the effective date of approval the transferee, including sublessee, and his surety will be responsible for the performance of all permit or lease obligations notwithstanding any terms in the transfer to the contrary. The account under the permit or lease must be in good standing before approval of a transfer will be given.

§ 193.26 *Limitation on overriding royalties.* An overriding royalty interest shall not be created by assignment or otherwise exceeding 50 percent of the rate of royalty first payable to the United States under the lease or an overriding royalty interest which when added to any other overriding royalty interest exceeds that percentage, excepting that where an interest in the leasehold, permit, or operating agreement is assigned, the assignor may retain an overriding royalty interest in excess of the above limitation if he shows to the satisfaction of the Director, Bureau of Land Management, that he has made substantial investments for improvements on the land covered by the assignment.

LIMITED COAL LICENSES

§ 193.27 *Purpose of license.* Coal licenses may be issued for a period of two years to individuals and associations of individuals to mine and take coal for their own local domestic need for fuel, but in no case for barter or sale, without the payment of any rent or royalty. Licenses may be issued to municipalities to mine and dispose of coal without profit to their residents for household use. Under such a license a municipality may not mine coal either for its own use or for nonhousehold use such as for factories, stores, other business establishments and heating and lighting plants.

§ 193.28 *Area and duration.* (a) A license to an individual or association, in the absence of unusual conditions or necessity, will be limited as to area to a legal subdivision of 40 acres or less and may be revoked at any time. Such license will expire by limitation at the end of 2 years from date of issuance, unless timely renewed on application filed and proper showing made prior to expiration of the 2-year period.

(b) Licenses to municipalities are limited as to area by the act, as follows: Not to exceed 320 acres for a municipality of less than 100,000 population, not to exceed 1,280 acres for a municipality of not less than 100,000, and not more than 150,000 population, and not to exceed 2,560 acres for a municipality of 150,000 population or more. Licenses to municipalities will expire by limitation at the end of 4 years from date of issuance, unless renewed; but every such licensee must make to the Director, Bureau of Land Management, an annual report of all operations conducted under such license.

§ 193.29 *Application for license.* Application for a limited license to mine coal for domestic needs must be filed, in quadruplicate, on Form 4–694a, or its substantial equivalent in the office specified in § 193.11 and be accompanied by a $10 filing fee. A municipality must file with the application a showing of (a) the law or charter and procedure taken by which it became and exists a legal body corporate, (b) that the taking of a license is authorized under such law or charter and (c) that the proposed action has been duly authorized by the governing body of the municipality.

§ 193.30 *Licenses to relief agencies.* (a) The Director, Bureau of Land Management, may grant authority to a recognized established relief agency of any State, upon its request, to take government-owned coal deposits within the State in localities where needed to supply families on the rolls of such agency who require coal for fuel for their homes and who are unable to pay for same.

(b) Tracts shall be selected at points convenient to supply the families in the locality thereof, and each family shall be restricted to the amount of coal actually needed for its use, which in no case shall exceed 20 tons annually.

(c) Coal may be taken from such tracts only by those given written authority by the relief agency, and all mining shall be done pursuant to permission and all Federal and State laws and regulations for the safety of miners, prevention of fires and of waste, etc., shall be observed. The relief agency shall see that the premises are left in a safe condition for future mining operations.

(d) The local relief agency may take coal from available land prior to issuance of license but not earlier than 5 days after it has filed in the land office of the district wherein the land is situated an application for license. No filing fee will be required. In the absence of objections and if the application is otherwise regular, a license will be granted. Pending action on the application for license, the relief agency may continue to take the coal.

NOTE: The reporting requirement of this regulation has been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

[SEAL] OSCAR L. CHAPMAN,
Secretary of the Interior.

MARCH 27, 1951.

[F. R. Doc. 51–3927; Filed, Apr. 2, 1951; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 708]

ALASKA

PARTIAL REVOCATION OF EXECUTIVE ORDER 6050 OF FEBRUARY 27, 1933, RESERVING LANDS FOR USE AS A SITE FOR AN ARMY RADIO RECEIVING STATION

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 11, 36; 16 U. S. C. 473), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6050 of February 27, 1933, reserving two parcels of land for use as a site for the Army radio receiving station at Juneau, Alaska, is hereby revoked so far as it affects the parcel of land described in such order as follows:

PARCEL TWO

Beginning at corner No. 4 of lot B, Mile 7 Group Homesites, in the northerly right-of-way line of Glacier Highway (66 feet wide), said corner being marked by a hemlock post 5 feet long and 4½ inches in diameter, squared to 3½ inches, set 2 feet in ground and marked "HS–4A" on east face and "B" on west face, and referenced by a hemlock tree 7 inches in diameter marked "WHS 4", and a hemlock tree 16 inches in diameter marked "WHS 4", bearing N. 35° W., 20 links, and N. 63½° E., 39 links, respectively, from initial corner post;

Thence from said initial point by metes and bounds;

N. 89°50′ W., 250 feet, along said northerly right-of-way line of Glacier Highway, to a point;

Due north, 150.0 feet, through lot "B" to a point;

S. 89°50′ E., 250.0 feet, through lot "B" to a point in the dividing line between lots "A" and "B" of said Mile 7 Group Homesites;

Due south, 150.0 feet, along said dividing line to place of beginning.

The parcel as described contains an area of 0.86 acres, more or less.

The land above described shall revert to its previous status as a part of the Tongass National Forest but shall not be subject to disposition of any kind prior to 10:00 a. m., on the 35th day after the date of this order. At that time it shall become subject to such disposition as

may by law be made of national forest lands.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MARCH 27, 1951.

[F. R. Doc. 51-3928; Filed, Apr. 2, 1951; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[Rev. S. O. 856, Amdt. 3]

PART 95—CAR SERVICE

INCLUSION OF SATURDAYS AND SUNDAYS COMPUTING DEMURRAGE ON ALL FREIGHT CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 28th day of March A. D. 1951.

Upon further consideration of Service Order No. 856 (15 F. R. 5049, 5050, 4916), and good cause appearing therefor: It is ordered, that:

Section 95.856 *Saturdays and Sundays to be included in computing demurrage on all freight cars* of Service Order 856 be and it is hereby suspended until 7:00 a. m., May 1, 1951, only to the extent it applies to the free time on cars loaded with import, coastwise or intercoastal traffic at ports, and to the free time on unloading box cars containing export, coastwise or intercoastal traffic at ports.

It is further ordered, that this amendment shall become effective at 7:00 a. m., April 1, 1951, and a copy be served upon the State railroad regulatory bodies of each State, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383 as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 51-3945; Filed, Apr. 2, 1951; 8:48 a. m.]

[S. O. 865, Amdt. 7]

PART 95—CAR SERVICE

DEMURRAGE ON FREIGHT CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 28th day of March A. D. 1951.

Upon further consideration of Service Order No. 865 (15 F. R. 6197, 6256, 6330, 6452, 7800, 16 F. R. 320, 819, 1131, 2040), and good cause appearing therefor: It is ordered, that:

Section 95.865 *Demurrage on freight cars*, of Service Order No. 865 be, and it is hereby further amended by substituting the following paragraph (e) for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., July 15, 1951, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., March 31, 1951.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383 as amended. 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 51-3946; Filed, Apr. 2, 1951; 8:49 a. m.]

[Rev. S. O. 866]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR FREIGHT CAR MOVEMENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 28th day of March A. D. 1951.

It appearing, that an acute shortage of freight cars exists in all sections of the country; that such shortage is further aggravated by the needs of National Defense; that cars loaded and empty are unduly delayed in terminals and in placement at, or removal from industries; that present rules, regulations, and practices with respect to the use, supply, control, movement, distribution, exchange, interchange, and return of freight cars are insufficient and to promote the most efficient utilization of cars; in the opinion of the Commission an emergency requiring immediate action exists in all sections of the country to promote car service in the interest of the public and the commerce of the people: It is ordered, that:

§ 95.866 *Railroad operating regulations for freight car movement.* (a) Each common carrier by railroad subject to the Interstate Commerce Act shall observe, enforce and obey the following rules, regulations and practices with respect to its car service:

(1) *Placing loaded cars at final destination for unloading.* Loaded cars, which after placement will be governed by demurrage tariff rules applicable to detention of cars awaiting unloading, shall be placed on carrier's or consignee's unloading tracks within twenty-four hours after the first 7:00 a. m., following arrival at the destination station or serving yard.

(2) *Placing loaded cars held for terminal services.* Loaded cars held at billed destination for accessorial terminal services described in the applicable demurrage tariff, such as holding for orders or inspection, shall be placed on carrier's or consignee's unloading tracks within twenty-four hours after disposition orders to place cars for unloading are actually received by the railroad. Carrier records shall show date and time such orders to place cars for unloading are received.

(3) *Constructive placement of loaded cars.* When delivery of a car for unloading cannot be made because of any condition attributable to the consignee, written notice that car is held and that the railroad is unable to deliver shall be sent or given consignees within twenty-four hours after arrival of car at hold point.

(4) *Removal of cars after unloading.* Where switching service is performed more than four days a week, remove empty cars from point of unloading or interchange tracks of industrial plants within twenty-four hours after the first 7:00 a. m. following unloading or release by consignee, unless such cars are ordered or appropriated by the shipper for reloading within such twenty-four hour period.

(5) *Transporting loaded cars.* Where switching service is performed more than four days a week, all outbound loaded freight cars shall be pulled from loading place or interchange tracks of industrial plants within twenty-four hours after the first 7:00 a. m. following acceptance by the carrier of the shipping order. Such cars shall be forwarded in line haul service within twenty-four hours after the first 7:00 a. m. following their receipt in outbound makeup or classification yards.

(6) *Restriction on holding cars for prospective loading.* Except cars assembled for peak or seasonal movements and special types of cars for specific types of loading, hold no more cars for prospective loading at any time, for any industry which it serves, than those needed to protect current outbound loading.

(7) *Repair tracks.* Repair any cars taken out of service for repairs, or carded for repairs, at the earliest time consistent with efficient railroad operating practices.

(8) *Special car orders.* Observe, obey and comply with special car orders now outstanding, issued by W. C. Kendall, former Chairman, or Arthur H. Gass, Chairman, Car Service Division, Association of American Railroads, and said Chairman, Arthur H. Gass, is hereby appointed Agent of the Commission with directions and authority to issue such orders as he may find necessary with respect to the location, relocation and distribution of freight cars as between sections of the country, or carriers by railroads or on such carriers, throughout the United States.

(9) *Yard checks, supervision, and records.* Make the necessary yard and track checks and maintain sufficient supervision and records to enable carriers to comply with subparagraphs (1) to (8) of this paragraph.